

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Carlmais Johnson	Team: Team # 4	CCRB Case #: 201108493	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 06/29/2011 9:01 PM	Location of Incident: East 176th Street near Grand Concourse	18 Mo. SOL 12/29/2012	Precinct: 46		
Date/Time CV Reported Thu, 06/30/2011 12:37 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Thu, 06/30/2011 12:37 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Eugene Donnelly	11586	948906	PBBX
2. SGT Albert Rodriguez	02441	933532	PBBX
3. POM Evan Johnson	11101	949143	PBBX

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Andrew Greges	28881	949061	PBBX

Officer(s)	Allegation	Investigator Recommendation
A . SGT Albert Rodriguez	Abuse: Sergeant Albert Rodriguez supervised the frisk of § 87(2)(b) and § 87(2)(b)	A . Exonerated
B . SGT Albert Rodriguez	Abuse: Sergeant Albert Rodriguez supervised the search of the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	B . Exonerated
C . SGT Albert Rodriguez	Abuse: Sergeant Albert Rodriguez supervised the search of § 87(2)(b)	C . Exonerated
§ 87(4-b) § 87(2)(g)		

Case Summary

On June 30, 2011, § 87(2)(b) filed his complaint with the Civilian Complaint Review Board via the online website.

On June 29, 2011, at approximately 9:01 p.m., § 87(2)(b) and § 87(2)(b) were driving in the vicinity of East 176th Street and Grand Concourse in the Bronx when they were stopped by Sergeant Albert Rodriguez, Officer Eugene Donnelly, Officer Andrew Greges, and Officer Evan Johnson, of Patrol Borough Bronx. § 87(2)(b) was issued summonses for § 87(2)(b). The following allegations resulted:

Allegation A) Abuse of Authority: Sergeant Albert Rodriguez supervised the frisk of § 87(2)(b) and § 87(2)(b)

Allegation B) Abuse of Authority: Sergeant Albert Rodriguez supervised the search of the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation C) Abuse of Authority: Sergeant Albert Rodriguez supervised the search of

§ 87(2)(b)

§ 87(2)(g)

§ 87(2)(g) it is recommended that **Allegation A, Allegation B, and Allegation C be Exonerated.**

§ 87(2)(g), § 87(4-b)

§ 87(2)(b) declined the option to have his complaint mediated.

§ 87(2)(g)

Results of Investigation

Civilian Statement(s)

Complainant: § 87(2) § 87(2)(b)

- § 87(2)(b) § 87(2)(b) at the time of incident, is a white male, § 87(2)(b) with brown hair and brown eyes. § 87(2)(b)

CCRB Testimony

§ 87(2)(b) filed a complaint with the CCRB via the online website on June 30, 2011 (encl. 13-16), and provided a detailed sworn statement on July 20, 2011 (encl. 19-23) § 87(2)(g)

On June 29, 2011, at approximately 9:01 p.m., § 87(2)(b) was driving in the vicinity of East 176th Street and Grand Concourse in the Bronx. Present in the car was his friend § 87(2)(b) who was in the front passenger seat. § 87(2)(b) drove on Grand Concourse and made a right onto East 176th Street. As soon as he made the turn, a marked police van used its lights to stop his vehicle. § 87(2)(b) did not realize initially that the police were trying to stop him and so he pulled his vehicle to the side to allow the officers to pass. When the officers directed him to pull over, he turned off the music on his phone, which was located in the center console. He did not make any other movements in the vehicle or reach for any items, nor did § 87(2)(b). Four uniformed officers approached the vehicle. § 87(2)(b) described the officers as: a white male, 6'0" in height with a medium build, approximately 23 years old with brown hair and brown eyes; black male, approximately 6'0" in height with a medium build, in his mid-thirties; white male, 5'9" in height, with blond hair; and white male, 5'10" in height with a medium build, and dirty-blond hair. These officers have been identified by the investigation as Sergeant Albert Rodriguez, Officer Eugene Donnelly, Officer Andrew Greges, and Officer Evan Johnson.

An officer identified by the investigation as Officer Greges instructed § 87(2)(b) and § 87(2)(b) to exit the vehicle, which they did. As soon as § 87(2)(b) exited the vehicle, Officer Greges frisked his upper body, his waistband, his groin, and his pockets. § 87(2)(b) calmly informed Officer Greges that he did not consent to the search. At the same time, he saw two of the officers searching § 87(2)(b) pockets. The officers then walked § 87(2)(b) and § 87(2)(b) to the rear of the vehicle. When § 87(2)(b) asked why he had been stopped, the officers informed him that their "narcotics detector" had detected narcotics. Because § 87(2)(b) did not have his identification with him, he told the officers that he was an attorney and provided his supervisor's name and contact information. The officers, however, did not believe that § 87(2)(b) was an attorney and Officer Greges repeatedly told § 87(2)(b) that he was going to make sure that he lost his license to practice law.

An officer identified by § 87(2)(b) as Officer Greges but determined by the investigation to be Officer Donnelly entered § 87(2)(b)'s vehicle, both front and back. § 87(2)(b) saw Officer Donnelly search the glove compartment and the center console, and saw Officer Donnelly touch the ignition. § 87(2)(b) told the officers that he did not consent to the search. The officers questioned § 87(2)(b) about his job, and his connection to § 87(2)(b). The two officers searched § 87(2)(b) pockets two more times at the back of the vehicle. The entire stop lasted between 45 minutes to an hour. § 87(2)(b) was issued two summonses for § 87(2)(b). When § 87(2)(b) entered his vehicle to leave, there was something wrong with the ignition and it would not start. § 87(2)(b) had to call for assistance in order to restart his vehicle.

Victim: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) at the time of incident, is a black male, § 87(2)(b) with brown hair and brown eyes. He refused to provide any employment information.

CCRB Testimony

§ 87(2)(b) provided the CCRB with a sworn statement on July 20, 2011 (encl. 24-28).

On June 29, 2011, § 87(2)(b) accompanied § 87(2)(b). When § 87(2)(b)'s vehicle was

stopped, neither § 87(2)(b) nor § 87(2)(b) made any movements or reach to grab any items from the car's interior. Three uniformed police officers exited the marked van. § 87(2)(b) described the officers as a white male, approximately 5'9" in height with a medium build, and spiky dark blond hair; a white male, 6'0" in height and approximately 175 pounds, approximately 26 years old, with brown hair; a "Italian" male, approximately 5'6" in height and with a muscular build, approximately 26 years old; black male. The black male officer, who was identified by the investigation as Sergeant Rodriguez, remained inside the vehicle. The officers instructed § 87(2)(b) and § 87(2)(b) to exit the vehicle, and they complied. As soon as § 87(2)(b) exited the vehicle, an unidentified officer frisked his chest, waist, and legs and then placed his hands inside of all of § 87(2)(b) pants pockets. The unidentified officer then escorted § 87(2)(b) and § 87(2)(b) to the rear of § 87(2)(b)'s vehicle, where he searched § 87(2)(b) pants pockets two additional times. An officer identified by the investigation as Officer Greges searched § 87(2)(b)'s pockets. Then, an unidentified officer placed his body inside the front part of the vehicle while an officer identified by the investigation as Officer Donnelly searched the entire vehicle, and lifted the seats.

During the stop, the officers told § 87(2)(b) that they used a detector to locate drugs. The brown-haired white male officer did not believe that § 87(2)(b) was a lawyer, and threatened to report him to his supervisor, saying, "You're not a fucking lawyer."

NYPD Statement(s):

Witness Officer: OFFICER ANDREW GREGES

- *Officer Andrew Greges § 87(2)(b) white male, § 87(2)(b), with brown hair and brown eyes.*
- *On the date of incident, Officer Greges was assigned to Impact, and worked with Sergeant Rodriguez, Officer Donnelly, and an unidentified officer, and worked from 4:00 p.m. to 12:35 a.m. the following date. He was dressed in uniform and assigned to a marked van.*

Memo Book

Officer Greges contains a detailed Memo Book entry regarding the incident (encl. 29-31). He noted that he effectuated a vehicle stop at East 176th Street and Walton Avenue for failure to signal at the corner of East 176th Street and Grand Concourse. He issued two summonses, one for § 87(2)(b) and one for § 87(2)(b). Officer Greges noted that § 87(2)(b) stated, "I didn't signal because I didn't know where I was going, sorry" and that there was a strong odor of marijuana.

Summonses § 87(2)(b) **and** § 87(2)(b)

§ 87(2)(a) 160.50

CCRB Statement

Officer Greges was interviewed at the CCRB on August 19, 2011 (encl. 33-34). On June 29, 2011, at approximately 10:00 p.m., Officer Greges and the other officers were driving in the vicinity of East 177th Street and Grand Concourse when Officer Greges observed § 87(2)(b) make a right turn onto East 176th Street without signaling. The officers followed § 87(2)(b) and stopped his vehicle. Officer Greges approached the driver's side of the vehicle. As soon as he approached, he noticed the strong odor of marijuana emanating from the vehicle. Officer Greges asked § 87(2)(b) for his license and registration, which he was unable to

produce. Officer Greges informed § 87(2)(b) that his vehicle smelled like marijuana and asked § 87(2)(b) whether he had marijuana in his vehicle. § 87(2)(b) who was sweating and shaking, said that he did not. As Officer Greges questioned him about the ownership of the vehicle, § 87(2)(b) became combative. During the conversation, § 87(2)(b) stated that he was a lawyer and asserted that it was absurd for officer Greges to allege that he had stolen the vehicle.

Based on the odor of marijuana, the failure to produce his license and registration, and § 87(2)(b)'s behavior, Officer Greges instructed him to exit the vehicle. Officer Greges walked with § 87(2)(b) to the rear of the vehicle and frisked him to make sure that he was not in possession of a weapon. Officer Greges explained that the 46th Precinct has had an increase in grand larceny, and he wanted to ensure that the vehicle was not stolen. He stated that there were no additional factors which led him to believe that § 87(2)(b) had any weapons on his person. Officer Greges did not search § 87(2)(b) nor did any other officers. Officer Greges did not believe that any other officer frisked § 87(2)(b).

Officer Greges stated that he did not search the center console or the glove compartment of the vehicle, nor did the other officers. Officer Greges stated that he did not lean his body into the vehicle or reach his arms into the vehicle, nor did any other officer. He did, however, shine a flashlight into the car while the doors were still closed to observe the floor of the vehicle. An unidentified officer was at the back of the vehicle with § 87(2)(b) and § 87(2)(b). Officer Greges did not frisk or search § 87(2)(b) nor did he see any officer perform this action.

Officer Greges asked § 87(2)(b) for his name and date of birth so that he could query the relevant databases. After verifying that the vehicle was indeed registered to § 87(2)(b) he issued § 87(2)(b) two summonses. No UF 250 Stop, Question, and Frisk Report was completed because summonses were issued.

Subject Officer: SERGEANT ALBERT RODRIGUEZ

- *Sergeant Albert Rodriguez, is a § 87(2)(b) old Hispanic male, § 87(2)(b) with brown hair and brown eyes.*
- *On June 29, 2011, Sergeant Rodriguez was assigned to Impact and worked with Officer Eugene Donnelly and Officer Andrew Greges from 4:00 p.m. to 12:35 a.m. the following day. He did not recall whether additional officers were working with them. He was dressed in uniform and assigned to a marked van.*

Memo Book

Sergeant Rodriguez had no entries in his Memo Book regarding this incident (encl. 36-37).

CCRB Testimony

Sergeant Rodriguez was interviewed at the CCRB on September 6, 2011 (encl. 38-39). Sergeant Rodriguez initially stated that he had no recollection of this incident. However, after being provided with a brief synopsis of the complaint and viewing copies of the summonses issued, he stated that he vaguely recalled the incident. On June 29, 2011, at approximately 10:00 p.m., Sergeant Rodriguez, Officer Donnelly, and Officer Greges made a vehicle stop at East 176th Street and Grand Concourse because § 87(2)(b) failed to signal a turn. Sergeant Rodriguez approached the passenger's side of the vehicle and instructed the individual, identified via investigation as § 87(2)(b) to lower his window, which he did. At this point,

Sergeant Rodriguez noticed the smell of marijuana emanating from inside the vehicle. Sergeant Rodriguez ordered § 87(2)(b) and § 87(2)(b) to exit the vehicle. § 87(2)(b) and § 87(2)(b) were frisked around their waists for safety, though he did not personally conduct any frisks and did not recall which officers frisked which passenger. Aside from smelling marijuana, Sergeant Rodriguez could not recall if there were any additional factors that led him to fear for his safety. Sergeant Rodriguez stated that he did not search the civilians' pockets, nor did the other officers. He stated that neither he nor the officers searched § 87(2)(b)'s vehicle. After § 87(2)(b) and § 87(2)(b) exited the vehicle, Sergeant Rodriguez stood at the back of the vehicle with his back to the vehicle such that he was not in a position to see what was happening at the vehicle. He did not hear anyone complain that the vehicle was being searched.

Officers asked § 87(2)(b) to produce his license and registration, which he did; no additional questions were posed during the vehicle stop. He denied that anyone identified himself as an attorney during the stop. Sergeant Rodriguez did not recall if a UF 250 report was prepared.

Subject Officer: OFFICER EUGENE DONNELLY

- *Officer Eugene Donnelly is a § 87(2)(b) old white male, § 87(2)(b) with blond hair and blue eyes.*
- *On the date of incident, Officer Donnelly was assigned to Impact and worked with Officer Greges and Sergeant Rodriguez from 4:00 p.m. to 12:35 a.m. the following date. He was dressed in uniform and utilized a marked vehicle.*

Memo Book

Officer Donnelly did not have any entries in his Memo Book regarding this incident (encl. 41-42).

CCRB Statement

Officer Donnelly was interviewed at the CCRB on September 30, 2011 (encl. 43-44). § 87(2)(g) He noted that when the officers approached § 87(2)(b)'s car, Sergeant Rodriguez stayed inside of the marked van, where he remained for the entirety of the incident. Officer Greges approached the driver's side of the vehicle while Officer Donnelly approached the passenger's side. As soon as Officer Donnelly reached the trunk of the vehicle, he noticed the very strong odor of marijuana emanating from the vehicle. He made eye-contact with Officer Greges to alert him to the presence of marijuana. Officer Greges requested documentation, and the driver, identified via investigation as § 87(2)(b) searched around the vehicle, including the glove compartment, but was unable to locate the documentation. The glove compartment was left open. Officer Greges and Officer Donnelly directed § 87(2)(b) and passenger § 87(2)(b) to exit the vehicle due to the odor of marijuana. § 87(2)(b) and § 87(2)(b) went to the rear of the vehicle. Officer Donnelly stated that § 87(2)(b) and § 87(2)(b) were most likely frisked, though he had no specific recollection of this occurring and could not say whether he or Officer Greges conducted a frisk. Aside from the smell of marijuana, there were no other factors that led Officer Donnelly to believe that they were in possession of a weapon. Officer Donnelly did not recall whether he, Officer Greges, or another officer searched anyone.

After § 87(2)(b) and § 87(2)(b) went to the rear of the vehicle, Officer Donnelly searched the vehicle. He explained that he did so because of the odor of marijuana, and stated that he

believed that he would find marijuana in the vehicle. He searched the lungeable areas in the back seats, the center console, and the opened glove compartment. During the search, Officer Donnelly located a wrapper commonly used for rolling and smoking marijuana, though he did not recall where he found this. No other officers searched the vehicle. The stop lasted approximately ten minutes.

Subject Officer: OFFICER EVAN JOHNSON

- *Officer Evan Johnson is a § 87(2)(b) old white male, § 87(2)(b), with brown hair and brown eyes.*
- *On the date of incident, Officer Johnson was assigned to Impact with Sergeant Rodriguez, Officer Donnelly, and Officer Greges, and worked from 4:00 p.m. to 12:35 a.m. the following date. He was dressed in plainclothes and utilized a marked van.*

Memo Book

Officer Johnson had no entries in his Memo Book regarding this incident (encl. 46-48).

CCRB Statement

Officer Evans was interviewed at the CCRB on October 27, 2011 (encl. 49-50). Officer Evans had no recollection of the incident despite viewing photographs of § 87(2)(b) and § 87(2)(b) and being provided with a synopsis of the incident.

NYPD Document(s)

46th Precinct Roll Call

The 46th Precinct Roll Call indicates that Sergeant Rodriguez, Officer Donnelly, Officer Greges and Officer Johnson were working on the date of incident. Notations indicate that Officer Greges and Officer Donnelly were assigned to the same vehicle (encl. 52-54).

46th Precinct Stop, Question, and Frisk Log

46th Precinct Stop, Question, and Frisk Log lists no reports regarding stops that occurred at the incident location.

Summons/Arrest for Incident and Disposition

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[REDACTED]

[REDACTED]

Status of Civil Proceedings

- § 87(2)(b) and § 87(2)(b) filed Notices of Claim with the City of New York on § 87(2)(b) claiming psychological and physical distress, pain and suffering, damage to property, fear and other trauma, and deprivation of liberty and seeking an unspecified amount as redress (encl. 58A-58E, 59A-59E). As of November 29, 2011, no 50H hearings have been scheduled (encl. 67).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

Civilian(s) CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 11).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (encl. 12).

Subject Officer(s) CCRB History

- Sergeant Albert Rodriguez has been a member of the service for eight years and there are no substantiated CCRB allegations against him (encl. 6-7).
- Officer Eugene Donnelly has been a member of the service for one year and there are no substantiated CCRB allegations against him (encl. 8-9).
- Officer Evan Johnson has been a member of the service for one year and there are no substantiated CCRB allegations against him (encl. 10).

Conclusion

Identification of Subject Officer(s)

§ 87(2)(g)

Allegations Not Pleaded

§ 87(2)(g)

§ 87(2)(g)

Investigative Findings and Recommendations

Allegation A) Abuse of Authority: Sergeant Albert Rodriguez supervised the frisk of § 87(2)(b) and § 87(2)(b)

Allegation B) Abuse of Authority: Sergeant Albert Rodriguez supervised the search of the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation C) Abuse of Authority: Sergeant Albert Rodriguez supervised the search of § 87(2)(b)

All parties agree that § 87(2)(b) and § 87(2)(b) were frisked after being removed from the vehicle. Sergeant Rodriguez stated that the frisks were conducted for the officers' safety, however the only articulated basis for this search was the odor of marijuana. It is undisputed that Officer Donnelly searched the lungeable areas of § 87(2)(b)'s vehicle, including the back seats, center console, and opened glove compartment, and he explained that he did so in an attempt to locate the marijuana that was detected by the officers at the beginning of the stop. § 87(2)(b) alleged that after he was frisked, an officer searched his pants pockets. While this account was corroborated by § 87(2)(b) most officers denied that a search occurred, though Officer Donnelly stated that he did not recall whether such a search occurred. All officers corroborated Officer Donnelly's assertion regarding the presence of the odor of marijuana. In People v. Chestnut, 43 A.D.2d 260 (1974), it was held that the smell of marijuana provided sufficient probable cause to search an automobile and its occupants (encl. 1-4) § 87(2)(g)

§ 87(2)(g) it is recommended that Allegation A, Allegation B, and Allegation C be exonerated.

§ 87(2)(g), § 87(4-b)

Team: _____

:

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date